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THE RIGHT TO PRIVACY.

"It could be done only on principles of private justice, moral fitness, and public convenience, which, when applied to a new subject, make common law without a precedent; much more when rece:ved and approved by usage."
WILLES, J., in Millar v. Taylor, 4 Burr. 2303, 2312. THAT the individual shall have full protection in person and in property is a principle as old as the common law; but it has been found necessary from time to time to define anew the exact nature and extent of such protection. Political, social, and economic changes entail the recognition of new rights, and the common law, in its eternal youth, grows to meet the demands of society. Thus, in very early times, the law gave a remedy only

for physical interference with life and property, for trespasses vi et arrmis. Then the "right to life" served only to protect the
subject from battery in its various forms; liberty meant freedom from actual restraint ; and the right to property secured to the in-dividual his lands and his cattle. Later,there came a recognition of man's spiritual nature, of his feelings and his intellect. Gradually the scope of these legal rights broadened; and now the right to life has come to mean the right to enjoy life,-the right to be let

alone ; the right to liberty secures the exercise of extensive civil privilegces; and the term " property " has grown to comprise every form of lpossession -intangible, as well as tangible.

Thus, with the recognition of the legal value of sensations, the protection against actual bodily injury was extended to prohibit mere attempts to do such injury; that is, the putting another in

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fear of such injury. From the action of battery grew that of as-

sault.1 Much later there came a qualified protection of the indi-

vidual against offensive noises and odors, against dust and smoke, and excessive vibration. The law of nuisance was developed.2 So

regard for human emotions soon extended the scope of personal immunity beyond the body of the individual. His reputation, the
standing among his fellow-men, was considered, and the law of slander and libel arose.3 Man's family relations became a part of the legal conception of his life, and -the alienation of a wife's affec-tions was held remediable.4 Occasionally the law halted,-

as in

its refusal to recognize the intrusion by seduction upon the honor of

the family. But even here the demands of society were met. A mean fiction, the action per quod servitium amisit, was resorted to, and by allowing damages for inj ury to the parents' feelings, an ade-quate remedy was ordinarily afforded.5 Similar to the expansion of the rigrht to life was the growth of the legal conception of property. From corporeal property arose the incorporeal rights issuing out of it; and then there opened the wide realm of intangible property, in the products and processes of the mind,6

'Year Book, Lib. Ass., folio 99, pl. 6b (1348 or I349), appears to be the firstreported

case where damages were recovered for a civil assault. 2 These nuisances are technically injuries to property; but the recognition of the
right to have propertyfree from interference by such nuisances involves also a recogni-tion of the value of human sensations. 8 YearBook, Lib. Ass., folio I77, pL I9 (1356), (2 Finl. Reeves Eng. Law, 395) seems to be the earliest reported case of an action for slander.

4 Winsmore v. Greenbank, Willes, 577 (I 745). 6 Loss of service is the gist of the action; but it has been said that " we are not aware of any reported case brought by a parent where the value of such services was held to be

the measure of damages." Cassoday, J., in Lavery v. Crooke, 52 Wis. 612, 623 (188I). First the fiction of constructive service was invented; Martin v. Payne, 9 John. 387

(I8I2). Then the feelings of the parent, the dishonor to himself and his family, were

accepted as the most important element of damage. Bedford v. McKowl, 3 Esp. I I9

(i8oo); Aiidrews v. Askey, 8C. & P. 7 (I837); Phillips v. Hoyle, 4 Gray, 568 (i855); Phelin v. Kenderdine, 20 Pa. St. 354 (1853). The allowance of these damages would

seem to be a recognition that the invasion upon the honor of the family is an injury to the parent's person, for ordinarilymere injury to parental feelings is not an element of
damage, e. 9 , the suffering of the parent in case of physical injury to the child. Fleming-ton v. Smithers, 2 C. & P. 292 (1827); Black v. Carrolton R. R. Co., IO La. Ann. 33

(I835); Covington Street Ry. Co. v. Packer, 9 Bush, 455 (1872). 6 "The notion of Mr. Justice Yates that nothing is property which cannot be ear-

marked and recovered in detinue or trover, maybe true in an earlystage of society, when property is in its simple form, and the remedies for violation of it also simple, but is not
true in a more civilized state, when the relations of life and the interests arising there.

from are complicated. " Erle, J., in Jefferysv. Boosey, 4 H. L. C. 8I 5 869 (I854).